



Public Interest Disclosure Act 2013

FORM 1 **Notice to discloser – Decision not to allocate (s 44(2))**

To: Mr Richard Mclean

drrichmcleanwhistleblower@gmail.com, 0434087401

On, 5 May 2023, through the department's PID@ag.gov.au mailbox, I, Sarah Christensen, an authorised officer of the Attorney-General's Department, received a disclosure from you.

In accordance with s 43(2) of the *Public Interest Disclosure Act 2013* (the PID Act), I have decided not to allocate this disclosure.

Reasons

For the following reasons, I am not satisfied there are reasonable grounds on which the disclosure could be considered an internal disclosure:

a. you are not a public official and have not been a public official

I am not satisfied you are or were a 'public official' within the meaning of the PID Act. In an email to the department dated 10 May 2023, you stated you were 'contracted' to work for the NDIS and that the Federal Court was 'satisfied' you were employed by DSS. However, you have not provided any particulars about this purported employment as a public official, nor have you provided any documentary evidence to substantiate your claim to be a public official. Your email of 10 May 2023 stated that Comcare had determined you are not an employee for the purposes of the SRC Act which was affirmed by the AAT.

b. the conduct was not engaged in by a public official in connection with their position as a public official

The conduct you have described is expressed in general terms ('conspiracy to pervert the course of justice', 'systemic oppression and victimisation', and 'financial exploitation') that relates to unnamed individuals in 'many agencies including the Attorney-General's Department'. You have also referenced the Attorney-General, although I note the PID Act definition of 'public official' does not include parliamentarians.

You have not identified a link between specific conduct and specific agencies, or specific officers in specific agencies. As such, I am unable to determine whether the conduct you are alleging is disclosable conduct for the purposes of the PID Act and, if so, to which agency it should be allocated.

Other courses of action that may be available to you

It appears from your correspondence that you have already disclosed the purported conduct to the National Disability Insurance Agency, the Department of Health and the Commonwealth Ombudsman.

Other courses of action may be available to you under other laws of the Commonwealth: These could include seeking judicial review, under the *Administrative Decisions (Judicial Review) Act 1977*, of my decision not to investigate the disclosure.

Signed:

A handwritten signature in black ink, consisting of a stylized 'B' followed by a long horizontal stroke.

Date: 19 May 2023